

3	Vasquez vs. GNIMGT, Inc. 2025-01535748	Defendant’s Motion to Compel Arbitration No tentative ruling is issued for Defendant’s motion to compel arbitration. The Court is concerned about how a ruling on this motion might affect or be affected by rulings in a parallel class action pending in Los Angeles Superior Court (Case No. 25STCV30384). By virtue of the parties’ Joint Case Management Statement (ROA 54), the Court has become aware of the Los Angeles case brought by Plaintiff against Defendant based on the same underlying Labor Code violations as alleged in this case. Although Rule of Court 3.300 mandates filing of a Notice of Related Case if two cases “Arise from the same or substantially identical transactions, incidents, or events,” neither party has complied with this requirement. The Los Angeles action was filed on October 16, 2025 and this lawsuit was filed on December 23, 2025. Given these parallel actions, the Court is concerned that a ruling on the motion to compel arbitration in this case might affect the Los Angeles case; it also is concerned that a motion to compel arbitration in the Los Angeles case (if one is made) might affect the case before this Court. Accordingly, before deciding the instant motion or taking any further action in this case, the Court will require the following: (1) the filing of a Notice of Related Case in both pending lawsuits; (2) a proof of service evidencing the filing of such a Notice in the Los Angeles case; (3) a statement whether a motion to compel arbitration has been made in the Los Angeles case and, if so, the date of the hearing and any ruling on that motion; (4) a statement whether the Los Angeles court has been made aware of the motion to compel arbitration in this case; (5) the parties’ positions as to whether a ruling on a motion to compel arbitration in one of the cases would be binding in the other case; (6) an explanation from Plaintiff as to why the two lawsuits are filed in different venues; and (7) the parties’ positions as to whether the Court should stay this case until the earlier-filed Los Angeles case is resolved. As to these last two points, the Court understands that some plaintiffs believe filing separate class action and PAGA lawsuits is necessary to avoid removal to federal court. Whether or not that is true with respect to cases filed in the same county is not before the Court. What concerns the Court is that by filing actions involving the same alleged underlying Labor Code violations in separate counties, it appears that a plaintiff may be “judge-shopping” in the hope of finding the most sympathetic judge.
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